

1 CODE 1940

2

3

4

5

6

IN THE FAMILY DIVISION

7

OF THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA

8

IN AND FOR THE COUNTY OF WASHOE

9

IN THE MATTER OF:

10

EVAKAY BALDES, AND

11

ALEXIS CLARK,

12

MINOR CHILDREN.

)
)
)
)
)
)

Case No. JV24-00104

JV24-00105

Dept. No. JM1

13

**MASTER'S FINDINGS OF FACT AND RECOMMENDATIONS AFTER
SIX-MONTH SEMIANNUAL REVIEW HEARING**

14

15

16

17

18

19

20

21

22

23

24

25

26

This matter came before the Court for a Six-Month Semiannual Review Hearing pursuant to NRS 432B.580 on July 10, 2024, before Master Alison Testa and the following persons appeared: Evakay Baldes and Alexis Clark, said minor children, appeared by video conference during the portion regarding their updates, and were represented by Jennifer Jeans, Esq. with Northern Nevada Legal Aid, who also appeared by video conference; Megan McCafferty, mother of said minor children, appeared by video conference, and was represented by Christine Sullivan, Deputy Public Defender, who also appeared by video conference; Justin Baldes, legal father of Evakay Baldes, appeared by video conference, and was represented by Neil Grad, Esq., who also appeared by video conference; Donovan Clark, presumed father of Alexis Clark, appeared by video conference, and was represented by Tirzah Mathews, Deputy Alternate Public Defender, who also appeared by video conference; Della Baker, relative placement, was present in the "audience" by audio conference only during the minor children's updates; Jennie Ballou

1 and Kasey Pomerleau, case workers from Washoe County Human Services Agency, appeared by
2 video conference, and were represented by Katie Felesina Miller, Deputy District Attorney, who
3 also appeared by video conference for Tyler E. Beach, Deputy District Attorney.

4 The Court, having received the Washoe County Human Services Agency's Report to the
5 Court filed on July 2, 2024, and hearing from all interested parties and considering itself fully
6 advised in the premises, hereby makes the following findings and recommendations:

7 FINDINGS

8 1. The Court has jurisdiction pursuant to NRS 432B.410 and NRS Chapter 125A.

9 2. An initial inquiry has been made about whether the Indian Child Welfare Act applies.

10 Based upon information provided by the parents or obtained by the Washoe County Human
11 Services Agency, the Indian Child Welfare Act does not apply.

12 3. Notification of this hearing was properly served upon the parties.

13 4. Placement of the children continues to be necessary because conditions for return have
14 not been met.

15 5. The current physical placement of said children in relative foster care is appropriate,
16 the least restrictive, and consistent with the best interest and special needs of the children.
17 Further, it is in the best interest of the children to be placed together pursuant to NRS 432B.550.

18 6. The permanency plan, pursuant to NRS 432B.553, remains reunification.

19 7. Washoe County Human Services Agency has made reasonable efforts to make it safe
20 for the children to return home pursuant to NRS 432B.393 as set forth in section IX of the Court
21 Report filed on July 2, 2024. The reasonable efforts include but are not limited to:

- 22 • Medicaid coverage;
- 23 • Child and Family Team Meetings;
- 24 • Collaboration with Mr. Clark's therapist and the VA;
- 25 • Collaboration and payment with ACCS for Ms. McCafferty's mental health needs;
- 26 • Collaboration with Ms. Hubbert for couples and family counseling;

- 1 • Collaboration with Kid's First for Alexis and Evakay's mental health needs;
- 2 • Collaboration with WCHSA licensing;
- 3 • Collaboration with Ms. Mulligen;
- 4 • Collaboration with Washoe County School District transportation;
- 5 • Payment for Ms. Baker's medical bills;
- 6 • Review Certificate of completion of parenting classes;
- 7 • Written exchange with the parents regarding the content of information gained from
- 8 parenting classes;
- 9 • Effects of Violence voucher for Ms. McCafferty;
- 10 • Review of Mr. Clark's paystubs;
- 11 • Review Evakay's text messages between Mr. Clark and Ms. McCafferty;
- 12 • Collaboration with the FEC;
- 13 • Case plan service agreement;
- 14 • Collaboration with WCHSA Clinical unit;
- 15 • Collaboration with WCHSA Medical unit;
- 16 • Fostering Connections letters;
- 17 • Kids Kottage placement staffing;
- 18 • Foster care payment prior to licensure for Ms. Baker;
- 19 • Home visits with Evakay and Alexis;
- 20 • Home visits to Mr. Clark and Ms. McCafferty's residence;
- 21 • Placement stability staffings;
- 22 • Transportation for Alexis and Evakay to FEC;
- 23 • Taxi voucher for Mr. Clark and Ms. McCafferty for parenting classes;
- 24 • Frequent case consultation with supervisors and the District Attorney;
- 25 • Partial payment for air conditioner repairs for Ms. Baker;
- 26 • Payment for dumpster rental;

- Reimbursement for medical expenses for Ms. Baker and her husband, Byron Maccietto;
- Reimbursement for Alexis and Evakay's clothing to Ms. Baker;
- Collaboration and voucher for Clover Counseling for therapeutic services for Evakay and Alexis;
- Voucher and collaboration with Dr. Highsmith for a neuropsychological evaluation for Ms. McCafferty;
- Purchase organizational supplies for the parents home;
- HSSS support to clean and organize the parents home;
- Purchase bunk bed and mattresses for Ms. Baker's residence;
- Payment to Junk Magicians for the parents' home, twice;
- Reno Rodeo Foundation financial supports;
- Rent payment for Mr. Clark and Ms. McCafferty;
- Payment to Reno Bike Project for bike repairs; and
- Collateral call with Sparks Police Department.

RECOMMENDATIONS

1. Legal and physical custody and care with the authority to determine the appropriate placement of Evakay Baldes and Alexis Clark shall remain with the Washoe County Human Services Agency, subject to review by the court.

2. Washoe County Human Services Agency may consent to any and all necessary and/or emergency medical treatment for the children while the children remain in its custody.

3. Megan McCafferty is ordered to comply with the Case Plan and Service Agreement attached as Exhibit 8 to the Court Report filed on July 2, 2024, subject to Court review upon request of any party.

///

///

1 4. Justin Baldes is ordered to comply with the Case Plan and Service Agreement attached
2 as Exhibit 8 to the Court Report filed on July 2, 2024, subject to Court review upon request of
3 any party.

4 5. Donovan Clarkis ordered to comply with the Case Plan and Service Agreement
5 attached as Exhibit8 to the Court Report filed on July 2, 2024, subject to Court review upon
6 request of any party.

7 6. Megan McCafferty, Justin Baldes and Donovan Clark shall provide Washoe County
8 Human Services Agency with identifying information, including names, addresses and phone
9 numbers for any relatives with whom the children may be placed.

10 7. Megan McCafferty and Donovan Clark shall refrain from harmful or offensive
11 conduct to the children, the other parent, the custodian of the children or any person who has
12 placement, to include discussing the details of this case and any disparaging statement or
13 comments.

14 8. Megan McCafferty, Justin Baldes and Donovan Clark shall reimburse Washoe County
15 Human Services Agency for costs of care for Evakay Baldes and Alexis Clark. Costs of care
16 shall continue to be set at zero (\$0.00) effective January 2024.

17 9. Washoe County Human Services Agency has discretion to request closure by letter
18 report and submission of an Order for Dismissal prior to the next scheduled hearing if deemed
19 appropriate by the agency.

20 10. The 12-Month Permanency Hearing scheduled for January 8, 2025, at 3:00 p.m., shall
21 be maintained.

22 11. All previous orders not in conflict with this order will remain in full force and effect.

23 NRS 125C.0045(6) regarding abduction, concealment or detention of a child: PENALTY
24 FOR VIOLATION OF ORDER: THE ABDUCTION, CONCEALMENT OR DETENTION OF
25 A CHILD IN VIOLATION OF THIS ORDER IS PUNISHABLE AS A CATEGORY D
26 FELONY AS PROVIDED IN NRS 193.130. NRS 200.359 provides that every person having a

1 limited right of custody to a child or any parent having no right of custody to the child who
2 willfully detains, conceals or removes the child from a parent, guardian or other person having
3 lawful custody or a right of visitation of the child in violation of an order of this court, or
4 removes the child from the jurisdiction of the court without the consent of either the court or all
5 persons who have the right to custody or visitation is subject to being punished for a category D
6 felony as provided in NRS 193.130.

7 Pursuant to NRS 125C.0045(7) the terms of the Hague Convention of October 25, 1980,
8 adopted by the 14th Session of The Hague Conference on Private International Law, apply if a
9 parent abducts or wrongfully retains a child in a foreign country.

10 IT IS SO RECOMMENDED.

11 Dated: July 10, 2024

12 
13 COURT MASTER

14
15 NOTICE

16 These Recommendations are governed by WDCR 24 and WDFCR 32. Any objection or
17 motion to adopt or modify the master's recommendation shall be filed within 7 days after service
18 of written findings of fact and recommendation. The objection or motion to adopt or modify shall
19 briefly state the primary issues for review.
20
21
22
23
24
25
26